



POLICE DEPARTMENT

June 14, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202300947 (Incident Date: January 1, 2023) regarding Police Officer Song Chen, Tax No. 969012 (DADS No. 2024-30554)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202300947, pertaining to Police Officer Song Chen. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Chen would be detrimental to the Police Department's disciplinary process.

In this matter, the Police Commissioner agrees with CCRB's substantiated findings, however he does not agree with the recommended penalty. A review of Police Officer Chen's disciplinary history revealed no prior substantiated CCRB allegations, and no formal Department disciplinary history. Based on Police Officer Chen's lack of disciplinary history during the course of his four (4) year career, the Police Commissioner believes the application of the mitigated penalties are warranted.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "B" Command discipline with the forfeiture of five (5) vacation days.

Sincerely,


Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

June 18, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Song Chen
Disciplinary Case No.: 2024-30554

Commissioner Caban:

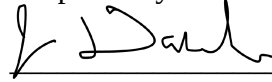
I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated June 14, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you “determined that to pursue Charges and Specifications against Police Officer Chen would be detrimental to the Police Department’s Disciplinary process” and you intend to retain jurisdiction over this matter and issue a Schedule B Command Discipline with the forfeiture of five (5) vacation days. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

While CCRB cannot deny that you are permitted to retain jurisdiction in matters such as this one with members of service who have a lack of a disciplinary history, CCRB requests that you allow these Charges and Specifications to be served on Police Officer Chen and permit CCRB to prosecute this case. By imposing a Command Discipline Schedule B with the forfeiture of five (5) vacation days for all three (3) substantiated allegations, Police Officer Chen is not truly being held accountable for this serious misconduct. Even though Police Officer Chen has not been disciplined since joining the Department, the misconduct in this case is serious and CCRB believes the imposition of the mitigated penalties for all three (3) specifications does nothing to deter such behavior by members of service. If CCRB’s Charges and Specifications were served on Police Officer Chen and he was willing to accept responsibility for the allegations contained in those Charges and Specifications, CCRB would be willing to offer a Command Discipline Schedule B with a total penalty of the forfeiture of ten (10) vacation days, taking into consideration the facts and evidence in this matter and balancing that with Police Officer Chen’s lack of a disciplinary history with the Department.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, CCRB disagrees with your intention of retaining jurisdiction in this matter and imposing a Command Discipline Schedule B with the forfeiture

of five (5) vacation days. CCRB requests that you allow our agency to pursue the prosecution of these Charges and Specifications against Police Officer Chen.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "J Darche", written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

June 24, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202300947 (Incident Date: January 1, 2023) regarding Police Officer Song Chen, Tax No. 969012 (DADS No. 2024-30554)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated June 18, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Song Chen. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Chen for the reasons expressed in my June 14, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs the issuance of a Schedule "B" Command Discipline with the forfeiture of five (5) vacation days.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office